

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

Index No.:

Date Purchased: 8/4/2017

SOPHIA GURLEY,

Plaintiff,

-against-

**THE CITY OF NEW YORK, NYPD, P.O. HOMER
HENRIQUEZ shield #4550, P.O. FERDI MEMODOSKI
shield #6508 and LT. MICHAEL DUNN, and JOHN AND
JANE DOE POLICE OFFICERS** (the last Officers'
names being fictitious and presently unknown)

Defendants.

SUMMONSPlaintiff designates
Bronx County as the
Place of trial.*The basis of venue is:*
Bronx County is where
cause of action arose.Plaintiff resides at:
170-02 93rd Avenue, #2L
Jamaica, New York 11433**To the above-named Defendants:**

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: Bronx, New York
July 25th, 2017

AUBREY WARD, ESQ.
Attorney for Plaintiff
SOPHIA GURLEY
400 East 161st Street
Bronx, New York 10451
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**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**_____
X Index No.:**SOPHIA GURLEY,**

Plaintiff,

VERIFIED COMPLAINT

-against-

**THE CITY OF NEW YORK, NYPD, P.O. HOMER
HENRIQUEZ (shield #4550), P.O. FERDI MEMODOSKI
(shield #6508) and LT. MICHAEL DUNN, and JOHN AND
JANE DOE POLICE OFFICERS (the last Officers'
names being fictitious and presently unknown)**Defendants.
_____X

Plaintiff, SOPHIA GURLEY, by her attorney, AUBREY WARD, as and for her Verified
Complaint, respectfully alleges, upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief for the violation of her rights secured by 42 USC §1983, §1988, the Fourth and Fourteenth Amendments to the United States Constitution.

2. The claims arise from a May 6th, 2017 incident in which the City of New York officers and of the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiff to, inter alia, unlawful frisk, search and seizure, false arrest and false imprisonment and malicious prosecution.

3. Thereafter, Plaintiff was maliciously prosecuted and denied the right to a fair trial in Bronx County Criminal Court until all criminal charges brought against Plaintiff were dismissed on or about July 5th, 2017.

4. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully, stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, denied Plaintiff the right to due process and used excessive force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and laws of the State of New York

5. Plaintiff, Sophia Gurley is a citizen of the United States and at all times here relevant, resident of the State of New York.

6. At all relevant times, the City of New York was and still is a municipal corporation organized and existing under the laws of the State of New York.

7. At all times herein mentioned, the Defendant, The New York City Police Department (“NYPD”), was and still is a municipal agency, created, organized and existing under and by virtue of the laws of the state of New York.

8. At all times relevant hereto, Defendant New York City, acting through the New York Police Department (“NYPD”), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel.

9. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

10. Officer Homer Henriquez was, at all times here relevant, a police officer of the NYPD, and as such was acting in the capacity of an agent, servant and employee of the City of New York.

11. Upon information and belief, at all times relevant hereto, Officer Henriquez was plaintiff's "arresting officer" and was under the command of the Bronx Narcotics of the NYPD. Defendant Henriquez is sued in his individual and official capacity.

12. Officer Ferdi Memodoski was, at all times here relevant, a police officer of the NYPD, and as such was acting in the capacity of an agent, servant and employee of the City of New York.

13. Upon information and belief, at all times relevant hereto, Officer Memodoski was under the command of the Bronx Narcotics of the NYPD. Defendant Memodoski is sued in his individual and official capacity.

14. Lieutenant Officer Michael Dunn was, at all times here relevant, a police officer of the NYPD, and as such was acting in the capacity of an agent, servant and employee of the City of New York.

15. Upon information and belief, at all times relevant hereto, Lieutenant Officer Michael Dunn was under the command of the Bronx Narcotics of the NYPD. Defendant Michael Dunn is sued in his individual and official capacity.

16. All other individual Defendants ("the officers"), including John Does # 1-5, individuals whose names are currently unknown to Plaintiff, are employees of the NYPD, and are sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties.

18. The individual defendants were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

19. At all times herein mentioned, defendants NYC, Police Officer Henriquez, NYPD and defendant officers stood in such a relationship with each other in providing law enforcement services as to make each liable for the acts and omissions of the others. Defendants NYC and NYPD are vicariously liable for the acts of defendant officers.

20. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible.

21. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

PROCEDURAL HISTORY

22. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York on July 28th, 2016 in compliance with the Municipal Law Section 50 and in accordance with New York State law.

23. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on or about October 26th, 2017.

24. More than thirty (30) days have elapsed since service of said Notice of Claim was filed, and the City of New York has failed to pay or adjust the claims.

25. This action is commenced within one (1) year and ninety (90) days from the date of the incident.

26. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

27. Plaintiff has sustained damages and seeks monetary damages against defendants in excess of the minimal jurisdictional limits of all the lower Courts of the State of New York, an award of costs, and such other and further relief as the court deems just and proper.

STATEMENT OF FACTS

28. Beginning on May 6th, 2016 at approximately 7:20 p.m. at 1023 Stebbins Avenue, in the County of Bronx, the Plaintiff, Sophia Gurley, a Black female, was unlawfully stopped, questioned, frisked, searched, seized, handcuffed, assaulted, battered, subjected to excessive force, subjected to civil rights violations, falsely arrested and falsely imprisoned, maliciously prosecuted and denied the Fifth Amendment Right to Due Process, without reasonable suspicion, probable cause or legal justification, by the NYPD and individually named police officer defendants.

29. Defendant P.O. Homer Henriquez (shield #16892 49th Precinct) illegally, unlawfully, willingly, maliciously, and intentionally, without a cause, struck, apprehended, arrested, verbally abused, used excessive force, searched and detained Plaintiff without cause or justification and violated plaintiffs federal and state civil and constitutional rights.

30. Following the assault, and battery, excessive use of force, and unlawful search and seizure, the defendants wrongfully, without any warrant or authority of law falsely arrested the plaintiff, detained against her will and was prosecuted maliciously.

31. That unlawful search and seizure, false arrest and malicious prosecution was made by the defendants without any warrant and in violation of legal process directing or authorizing the plaintiff's unlawful search and seizure, false arrest and malicious prosecution.

32. Plaintiff was arrested and charged with Criminal Possession of a Controlled Substance in the Fifth Degree and other related charges. The charges made in the criminal complaint against plaintiff are wholly untrue and false.

33. The Plaintiff made numerous appearances in court and was forced to retain a lawyer. All charges against Plaintiff have since been dismissed.

34. On or about May 6th, 2016, Plaintiff was visiting the Bronx New York from her home in Queens to complete a photo shoot at an aspiring artists residence located at the aforementioned Bronx, NY, 1023 Stebbins Avenue address.

35. At the time herein mentioned, Plaintiff was and is a professional photographer hired to do a photo shoot at the aforementioned Stebbins Avenue location.

36. At approximately 7:20 p.m. on the evening of the aforementioned date and location, the Plaintiff was startled by the sound of a "bang" at the apartment door. Plaintiff was unaware at that moment that a police raid was ensuing while she was setting up her camera equipment in one of the location's bedrooms.

37. Defendant Officers broke down the apartment door and rushed directly toward the Plaintiff in the bedroom where she was mantling her camera equipment.

38. Still unaware and confused as to what was occurring, Defendant Officers, dressed in helmets and combat gear, pointed guns with red laser beams directly at Plaintiff Sophia Gurley. Plaintiff was ordered to get on the ground face down. Shook by sheer terror, the Plaintiff cooperated and immediately followed the Officer's orders by collapsing to the floor.

39. As Plaintiff Sophia Gurley was on the ground, Defendant Officers handcuffed her immediately.

40. As Plaintiff laid face down on the ground, she asked Defendant Officers for an explanation as to what was occurring to which the Officers responded that she was resisting arrest and that she was going to jail for possession of drugs.

41. Plaintiff attempted to ask the same question for a second time and attempted to explain that she did not live there. Plaintiff had identification in her possession as proof of such.

42. Plaintiff also succinctly reiterated that she was visiting the apartment for a business purpose.

43. Plaintiff also attempted to show the Defendant Officers her New York State Identification card.

44. Defendants Officers and Officers John Doe 1-5 made no attempt to take or accept a statement from Plaintiff, informing her that she was going to jail for possession of drugs.

45. At that time and place, without probable or just cause, Police Officers, acting within the scope of his authority as police officer, seized plaintiff, Sophia Gurley, with force and wrongfully and unlawfully arrested her, and maliciously, wrongfully, and unlawfully compelled her to go to the police precinct in the City of New York against her will and charged her with a felony.

46. The arrest of Plaintiff was made without probable cause, or reasonable suspicion that she had committed any crime because defendant did not honestly, reasonably, and in good faith believe plaintiff to be guilty of the crime charged because Plaintiff explained that she was a not a resident of the apartment and was just visiting for business purposes.

47. Nevertheless, Plaintiff was detained and taken to the 41st Precinct in the Bronx and was arrested, processed, fingerprinted, photographed along with the other at least six other individuals who were in the apartment.

48. The Defendants maliciously and without reason or probable cause filed a criminal complaint against the plaintiff in the Supreme Court, City and County of Bronx.

49. On the evening of May 6th, 2016, the Plaintiff Sophia Gurley was taken to Bronx Central Bookings. After she was forced to stay the weekend in jail, she was arraigned days later. She pleaded not guilty, was released on her own recognizance and finally set free.

50. There was never an indictment.

51. All of the above acts were against the will of the plaintiff and were committed by the Defendant, within the scope of their authority and without just and probable cause.

52. Plaintiff was forced to lose her job as a result of these false and absurd allegations against her, as she was being maliciously prosecuted.

53. The Plaintiff expensive camera equipment was destroyed by the Defendant Officers.

54. The Plaintiff arduously fought these allegations until all criminal charges were eventually dismissed by the Bronx District Attorney's Office on July 5th, 2016.

55. At all times during the events described above, the Defendants were engaged in a joint venture and formed an agreement to violate Plaintiff's rights. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during said events. They failed to intervene in the obviously illegal actions of their fellow officers against Plaintiff.

56. The plaintiff, as a result of the unlawful, malicious, willful, and wanton acts of the defendants, was greatly injured, both bodily and mentally, and was subjected to great humiliation, embarrassment, and scorn among her friends and neighbors and coworkers, causing the plaintiff great mental anguish, all to her damage.

57. During all of the events above described, Defendants acted maliciously in instigating and continuing the criminal prosecution. The Defendants deliberately ignored Plaintiff's contentions and continued to prosecute based upon an improper motive, purpose, prejudice, and desire to intentionally and maliciously annoy, humiliate, embarrass, and frustrate the Plaintiff and cause her extreme inconveniences.

FIRST CAUSE OF ACTION

(Violation of Plaintiff's Fourth and Fourteenth Amendment Rights)

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned and maliciously prosecuted, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to

be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

60. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION
(False Arrest and False Imprisonment)

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The acts and conduct of the defendants constitute False Arrest and False Imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

63. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

66. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION
(Unlawful Search)

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of her pants and underneath her clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

69. Defendants lacked probable cause to search plaintiff.

70. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

73. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION
(Malicious Prosecution)

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

76. Defendants commenced and continued a criminal proceeding against plaintiff.

77. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which she was prosecuted.

78. The prosecution and criminal proceedings terminated in plaintiff's favor. All charges against the Plaintiff, Sophia Gurley were dismissed on the aforementioned date of July 5th, 2016.

79. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

82. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

(Violation of Plaintiff's Fourth and Fourteenth Amendment Rights)

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. The use of excessive force by defendants by handcuffing plaintiff in an excessively

tight manner and refusing to loosen the handcuffs and by using unreasonable force throughout the course of plaintiff's arrest is an objectively unreasonable physical seizure of plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

85. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

86. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SIXTH CAUSE OF ACTION
(Negligent Infliction of Emotional Distress)

87. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 86 with the same force and effect as if more fully set forth at length herein.

88. By searching plaintiff, falsely arresting her, maliciously prosecuting her and subjecting her to excessive force, without any basis, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Sophia Gurley.

89. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

90. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

92. The City of New York, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

93. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION
(Negligent Hiring, Retention, Training and Supervision)

94. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 93 with the same force and effect as if more fully set forth at length herein.

95. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

96. The City of New York and the NYPD's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff Gurley.

97. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

(Assault)

98. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 97 with the same force and effect as if more fully set forth at length herein.

99. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

100. As a direct and proximate result of such acts, Defendants deprived Plaintiff of her rights under the laws of the State of New York.

101. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department which are therefore responsible for their conduct.

102. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

103. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

(Battery)

104. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 103 with the same force and effect as if more fully set forth at

length herein.

105. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in hostile and/or offensive manner stuck Plaintiff without her consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

106. As a direct and proximate result of such acts, Defendants deprived Plaintiff of her rights under the laws of the State of New York.

107. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department which are therefore responsible for their conduct.

108. The City, as the employer of the officer Defendants, is responsible for heir wrongdoing under the doctrine of respondeat superior.

109. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION
(Municipal Liability under 42 USC 1983)

110. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 109 with the same force and effect as if more fully set forth at length herein.

111. Defendants collectively and individually, while acting under color of state law, engage in conduct that constituted a custom usage, practice, procedure or rule of Defendant City of New York, which is forbidden by the Constitution of the United States.

112. The aforementioned customs, policies, usages, practices, procedures and rules of

Defendant City of New York and the New York City Police Department included, but were not limited to arresting all individuals present in a home where a search warrant is executed and contraband is recovered from a location in the home that is not within all individuals' possession custody or control, but the NYPD officers arrest all of the home's occupants, even without a specific, articulable factual basis supporting reasonable suspicion and/or probable cause to arrest some of the individuals that Plaintiff and the officers fabricate allegations against some individuals to justify the arrest, as well as inadequate screening, hiring, retaining, training and supervising is employees with respect to these issues.

113. The aforementioned customs, policies, usages, practices, procedures and rules of Defendant City of New York and the New York City Police Department were the moving force behind the violation of Plaintiff's rights as described herein. As a result of the failure of Defendant City of New York and New York City Police Department to properly recruit, screen, train discipline and supervise its officers, including the individual Defendants, Defendant City fo New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complaint of herein.

114. The foregoing customs, policies, usages, practices, procedures Defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by the Plaintiff as alleged herein.

115. The foregoing customs, policies, usages, practices, procedures Defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

Defendants collectively and individually, while acting under color of state law were directly and

actively involved in violating Plaintiff's constitutional rights.

ELEVENTH CAUSE OF ACTION
(Failure to Intervene)

116. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 115 with the same force and effect as if more fully set forth at length herein.

117. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

118. Defendants failed to intervene to prevent the unlawful conduct described herein.

119. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, she was put in fear of her safety, and she was humiliated and subject to other physical constraints.

120. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

121. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

122. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

123. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELFTH CAUSE OF ACTION
(Municipal and Supervisory Liability)

124. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 123 with the same force and effect as if more fully set forth at length herein.

125. The City is liable for the damages suffered by Plaintiff as a result of the conduct of their employees, agents, and servants, in that, after learning of their employees' violation of Plaintiff's constitutional rights, they failed to remedy the wrong; they have created a policy or custom under which unconstitutional practices occurred and allowed such policies or customs to continue, and they have been grossly negligent in managing subordinates who caused the unlawful condition or event. The City has been alerted to the regular use of excessive force and false arrests by its police officers, but has nevertheless exhibited deliberate indifference to such excessive force and false arrests; that deliberate indifference caused the violation of Plaintiff's constitutional rights in this case.

126. The aforesaid event was not an isolated incident. The City has been aware for some time, from lawsuits, notice of claim, complaints filed with the Civilian Complaint Review Board, and judicial rulings suppressing evidence and finding officers incredible as a matter of law, that a disturbing number of their police officers use excessive force, unlawfully search and seize citizens, bring charges against citizens with no legal basis, perjure themselves in charging instruments and testimony, and fail to intervene in and report the obviously illegal actions of their fellow officers. Nevertheless, the City has allowed policies and practices that allow the aforementioned to persist.

127. For example, the well documented failures of the Civilian Complaint Review Board ("the CCRB"), a City agency, to substantiate obviously meritorious citizen complaints have gone

uncorrected. The CCRB regularly finds complainants lack credibility based on the fact that such complainants have also brought lawsuits to remedy the wrongs they have experienced, a practice that often results in not substantiating the most serious charges brought to them. In addition, the CCRB virtually never initiates their own findings of false statements against officers who have made false statements to the CCRB in their own defense, nor do they initiate findings that officers have failed to report their fellow officers' misconduct; thus officers have no real incentive to come forward, or to testify truthfully at the CCRB. The CCRB has no enforcement mechanisms once making a finding against an officer; it can only make recommendations to the NYPD, once finding misconduct by an officer.

128. The NYPD, once receiving a substantiated complaint, the CCRB, fails to adequately discipline officers for misconduct. The NYPD Department Advocate, which is endowed with the responsibility of following up on substantiated CCRB charges, is understaffed and under-utilized. Furthermore, in the extraordinary rare event that the CCRB substantiates a complaint and the Department Advocate proves the case in an internal trial against an officer, the police commissioner still maintains the power to reduce the discipline against such officer.

129. Further, the City has no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected. Additionally, according to a report of the New York City Bar Association issued in 2000, the City has isolated their law department from the discipline of police officers, so that civil suits against police officers for actions taken in their capacity as police officers have no impact on the officers' careers, regardless of the outcome of the civil actions. Alan Hevesi, as New York City Comptroller, in 1999 reported that there was a

“total disconnect” between the settlements of even substantial civil claims and police department action against officers.

130. The City is aware that all of the aforementioned has resulted in violations of citizens’ constitutional rights. Despite such notice, the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate plaintiff’s civil rights, without fear of reprisal.

131. Plaintiffs have been damaged as a result of the deliberate indifference of the City to the constitutional rights of the City’s inhabitants.

132. The City is liable for the damages suffered by plaintiffs as a result of the conduct of their employees, agents, and servants, in that, after learning of their employees’ violation of plaintiffs’ constitutional rights, they failed to remedy the wrong; they have created a policy or customs to continue, and they have been grossly negligent in managing subordinates who caused the unlawful condition or event. The City has been alerted to the regular use of excessive force and false arrests by its officers, but has nevertheless exhibited deliberate indifference to such excessive force and false arrests; that deliberate indifference caused the violation of plaintiffs’ constitutional rights in this case.

THIRTEENTH CAUSE OF ACTION
(Loss of Employment)

133. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 132 with the same force and effect as if more fully set forth at length herein.

134. Defendant officers caused, permitted and allowed plaintiff to lose employment and employment opportunities, in that she was no longer able to continue working and was also caused

to suffer a decreased likelihood of upward mobility because of her arrest. Said Defendants caused, permitted and allowed Plaintiff to suffer mental trauma as a result of their actions.

JURY DEMAND

135. Plaintiff, Sophia Gurley, hereby demands a trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff Sophia Gurley demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to USC §1988.

VERIFICATION

AUBREY WARD, being duly sworn deposes and says:

That he is the attorney for the Plaintiff, SOPHIA GURLEY, in the above titled action. That he has read the foregoing COMPLAINT and knows the contents, thereof, and upon information and belief, deponent and belief, deponent believes the matters alleged therein to be true. The reason the verification is made by a deponent and not by Plaintiff is that the Plaintiff herein is in a County other than the one in which deponent maintains his office. The source of deponent's information and the grounds on his belief are communications, papers, reports and investigations contained in the file.

Dated: Bronx, New York
July 25th, 2017



AUBREY WARD, ESQ.
Attorney for Plaintiff
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